

Broad Agency Announcement

NSWC PHD-26-S-0001

INTRODUCTION:

This publication constitutes a Broad Agency Announcement (BAA) for awards by Naval Surface Warfare Center Port Hueneme Division (NSWC PHD). This BAA also constitutes a merit-based, competitive procedure, in accordance with the Department of War (DoW) Grant and Agreement Regulations (DoDGARS) 32 C.F.R. § 22.315. The Government will not issue a formal Request for Proposals (RFP), solicitation, and/or additional information regarding this announcement.

NSWC PHD will not issue paper copies of this announcement. NSWC PHD reserves the right to select for award all, some, or none of the proposals in response to this announcement. NSWC PHD reserves the right to award funds to any proposed option year(s), subject to availability of funds. NSWC PHD provides no funding for direct reimbursement of proposal development costs. Technical and cost proposals (or any other material) submitted in response to this BAA will not be returned. The Government will treat all proposals as sensitive, competitive information, and their contents will be protected from unauthorized disclosure.

I. GENERAL INFORMATION

A. Agency Name:

Naval Surface Warfare Center Port Hueneme Division
4363 Missile Way
Port Hueneme, CA 93043

B. Research Opportunity Number:

TBD

C. Response Date:

This announcement will remain open until 1500PDT on **22 June 2026** or until replaced by a successor BAA or the announcement is cancelled by the Government. Applicants may submit proposals at any time during this period. The Government will not accept nor consider proposals submitted after the established deadline.

Applicants may submit white papers prior to submitting full proposals. White papers are encouraged but not required. This step allows applicants the option to ascertain whether their topic will be of interest to NSWC PHD prior to the applicant submitting a full proposal. Applicants must submit white papers no later than **17 February 2026**. Full proposal deadline is **22 June 2026**. The Government will not accept nor consider white papers, nor full proposals submitted after the established deadlines.

Applicants may submit questions or requests for clarification, as it pertains to any aspect of this BAA. Each question/request should identify the BAA number, page number, paragraph number, or other identifier information relating to the question. The Government will not respond to any questions/requests that do not provide this information. Additionally, the Government will not provide an acknowledgement that it has received questions/requests.

Applicants must ensure that their questions/requests are received by the Government, no later than **16 January 2026**. Although every effort will be made, the Government makes no guarantee that questions received after the deadline above will be answered.

Applicants may submit more than one white paper or proposal. Proposals in response to this BAA shall remain valid **for 365 days from date of submission**.

Applicants shall submit white papers and questions/requests via email to the Business Points of Contact listed for this BAA.

D. Business Points of Contact:

Contract Specialist:

LaToya Ford

Contracts, Code 0223

Naval Surface Warfare Center Port Hueneme Division

4363 Missile Way

Port Hueneme, CA 93043

Email: latoya.a.ford.civ@us.navy.mil

Agreements Officer:

Ashley Yosuco Krasnoff

Contracts, Code 0221

Naval Surface Warfare Center Port Hueneme Division

4363 Missile Way

Port Hueneme, CA 93043

Email: ashley.y.krasnoff.civ@us.navy.mil

E. Naval Surface Warfare Center Port Hueneme Division WSD (NSWC PHD WSD) is interested in receiving proposals for the following Basic Research Opportunity Areas:

1. Topic : Naval Combat System Readiness

Description. NSWC PHD WSD invites innovative research and development proposals to enhance fleet operational readiness and support capabilities. This BAA seeks novel approaches leveraging advanced technologies and data-driven solutions to improve the maintenance, modernization, and sustainment of naval assets. Areas of interest include: Predictive analysis techniques for enhanced understanding of enemy actions and adaptive planning, with a focus on reducing manpower overhead through advanced technologies and

simulation. Fully immersive, simulation-based training using virtual and mixed reality environments for mission planning, analysis, and rehearsal across diverse operational scenarios. Artificially intelligent agents (e.g., computer-based tutors, virtual humans) to improve training effectiveness and reduce costs, focusing on realism, adaptability, and natural language understanding. Predictive data analytics to predict ship maintenance issues. Utilization of proactive fault monitoring for increased operational availability and reduced downtime. NSWC PHD WSD is interested in innovative technologies, predictive analytics, and machine learning to improve efficiencies, identify risks/opportunities, and forecast performance with the goal being to maximize fleet readiness through data-informed strategies, quality, on-time delivery, and continuous improvement.

North American Industry Classification System Code: 541715 - Research and Development in the Physical, Engineering, and Life Sciences (except Nanotechnology and Biotechnology)

2. Topic: Hypersonic & Suborbital Research and Validation

Description. NSWC PHD WSD invites innovative research and development proposals to advance hypersonic technologies. This BAA solicits advanced research and efforts in the areas of hypersonic development, advanced instrumentation, autonomous flight termination system development, and computational fluid dynamics modeling. Areas of particular interest include: Hypersonic test-beds and payload validation techniques; Novel high-heat flux measurement methods; Ablatives and materials research; Innovative approaches to prototyping and testing of new flight vehicles: Advanced propulsion systems (e.g., scramjets); Guidance, navigation and control (GNC) systems optimized for hypersonic flight; Thermal management strategies (e.g., novel cooling techniques, high-temperature materials); Characterization and mitigation of aeroelastic effects and flutter; Autonomous flight termination systems: Advanced telemetry encoder and modulation technologies for safer and more efficient testing in hypersonic environments. The goal is to accelerate hypersonic capabilities through cutting-edge research and development.

North American Industry Classification System Code: 541715 - Research and Development in the Physical, Engineering, and Life Sciences (except Nanotechnology and Biotechnology)

3. Topic. Directed Energy, Electronic Warfare (EW) and Cybersecurity

Description. NSWC PHD WSD invites innovative research and development proposals to enhance its capabilities in electronic warfare, cybersecurity, and multi-domain simulation. This BAA solicits efforts in the following areas: Electronic Attack Verification and Directed Energy Validation tools allowing for robust testing and evaluation; Directed Energy Proposals for advanced beam control, atmospheric propagation modeling, compact high-power sources, and target effects characterization: adaptive electronic warfare techniques, cognitive radio technologies, and advanced signal processing. Proposals for AI-enabled techniques for cyber risk assessments, intrusion detection, post-quantum cryptography, secure coding practices, and Advanced Persistent Threat mitigation. Proposals for Multi-Domain Simulation with development of a comprehensive platform by fusing existing Live, Virtual, and Constructive (LVC) environments with advanced modeling tools.

North American Industry Classification System Code: 541715 - Research and Development in the Physical, Engineering, and Life Sciences (except Nanotechnology and Biotechnology)

4. Topic. Manufacturing & Prototyping

Description. NSWC PHD WSD is soliciting proposals to accelerate the fielding of critical Navy systems through rapid hardware development, comprehensive environmental qualification testing, and advanced manufacturing/prototyping capabilities. Through this BAA we seek proposals to drastically reduce turnaround time for specialized hardware, including: Advanced materials processing (e.g., additive manufacturing, composites fabrication): Miniature and micro-scale device fabrication: High-precision machining and assembly: Embedded systems development and Rapid prototyping of electronic enclosures and mechanical components. This BAA also invites proposals for development of comprehensive environmental qualification testing capabilities for Navy land based sub-orbital launchers and sub-orbital payload systems. The objective is to streamline development and validation processes, enabling faster deployment, enhanced mission effectiveness, and improved operational readiness through access to unique facilities, expertise, and agile development methodologies.

North American Industry Classification System Code: 541715 - Research and Development in the Physical, Engineering, and Life Sciences (except Nanotechnology and Biotechnology)

5. Topic. Unmanned Aerial Vehicle Capability

Description. NSWC PHD WSD seeks innovative proposals providing early-stage UAS validation and flight-worthiness support, including airworthiness assessments, system integration, and operational testing are of particular interest. Proposals for advanced telemetry, modulation, and antenna systems for sea environments to enhance data acquisition and communication from Navy airborne and surface platforms. Innovative proposals for low detection probability communication, alternative communication methodologies, and advanced communication protocols are of interest. The goal is to accelerate the development and deployment of advanced UAS technologies for critical Navy missions.

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a. Award Information:

This BAA is intended for proposals related to basic and applied research, and that part of development not related to the development of a specific system or hardware procurement. This announcement is not for the acquisition of technical, engineering, and other types of support services.

Applicants should indicate in their proposal whether they believe the scope of the research included in their proposal is fundamental or not. While applicants should clearly explain the intended results of their research, the Government shall have sole discretion to select award instrument type and to negotiate all instrument terms and conditions with selectees. Appropriate

clauses will be included in resultant awards for non-fundamental research to prescribe publication requirements and other restrictions as appropriate.

1. Assistance Instruments - Grants and Cooperative Agreements (10 U.S.C. 4001(b)(1))

a. **Grant:** A legal instrument consistent with 31 U.S.C. 6304, is used to enter into a relationship:

- The principal purpose of which is to transfer a thing of value to the recipient to carry out a public purpose of support or stimulation authorized by a law of the United States, rather than to acquire property or services for the Federal Government's direct benefit or use.
- In which substantial involvement is not expected between the Federal Government and the recipient when carrying out the activity contemplated by the grant.
- No fee or profit is allowed.

b. **Cooperative Agreement:** A legal instrument, which consistent with 31 U.S.C 6305, is used to enter into the same kind of relationship as a grant, except that substantial involvement is expected between the Federal Government and the recipient when carrying out the activity contemplated by the cooperative agreement.

- No fee or profit is allowed.

The Government may make multiple awards. The amount of resources made available to this BAA will depend on the quality of the proposals received and the availability of funds. The Government reserves the right to select for negotiation all, some, one, or none of the proposals received in response to this solicitation and to make awards without discussions with applicants. The Government also reserves the right to conduct discussions if later determined to be necessary. Applicants should note that the required degree of interaction between parties will be to the maximum extent possible, as permitted by applicable law or regulation. The Government reserves the right to request any additional necessary documentation once it makes the award instrument determination. Such additional information may include but is not limited to Representations and Certifications. The Government reserves the right to remove proposers from award consideration should the parties fail to reach agreement on award terms, conditions, and cost/price within a reasonable time or the applicant fails to timely provide requested additional information.

Awards will take the form of grants or cooperative agreements. Any assistance instrument awarded under this BAA will be governed by the award terms and conditions that conform to DoW's implementation of OMB circulars applicable to financial assistance. Terms and conditions may include revisions to reflect DoW implementation of the Office of Management and Budget (OMB) guidance set forth in 2 CFR Part 200, "Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards;" applicable terms and conditions provided in DoDGARS; and the current DoD Research and Development

(R&D) General Terms and Conditions (<https://www.nre.navy.mil/work-with-us/manage-your-award/manage-grant-award/grants-terms-conditions>).

II. WHITE PAPERS

A. Prior to submitting a proposal, applicants may submit a white paper outlining the proposed research project. The white paper should clearly define the problem, provide thorough background information, and propose evidence-based, actionable recommendations. The Government will evaluate white papers and assign either a Category I or Category II rating, as outlined below. If a white paper is given a Category II rating, it is recommended that a full proposal not be submitted, as it has been determined that the topic does not meet agency needs. Based on a technical evaluation of the white paper, the Government may then request certain applicants to submit a proposal in accordance with the instructions in this BAA. At a minimum, the white paper shall contain the following:

1. University name, address, and CAGE
2. Proposal Title
3. List of Principal and Associate Investigators with affiliation
4. Total Requested Funding
5. NSWC PHD need that is being addressed
6. One or two-paragraph abstract of what is being proposed
7. Dates of execution
8. Proposed Deliverables (i.e. papers, presentations)

NOTE: Page Limitations. The white paper shall be limited to **10** pages single spaced, 8.5 by 11-inch pages. Text shall be 12-point Times New Roman font. Smaller type may be used in figures and tables as long as it is clearly legible. The page limitation includes all information (e.g., indices, photographs, foldouts (2 page), appendices, attachments, resumes, SOW, etc.). Blank pages, title pages, tables of content, lists, tabs or cover sheets are not included in the page count. The Government will not consider pages in excess of this limitation.

B. Evaluation Criteria:

White papers will not be evaluated against each other because applicants are not submitting papers in accordance with a common statement of work. The white papers will be evaluated utilizing a peer or scientific review process and shall be evaluated based on the following criteria that are listed in “DESCENDING” order of importance:

1. Overall scientific and technical merits of the white paper;
2. Importance to NSWC PHD programs;
3. Fund availability/affordability

Since a complete cost and price proposal is not required with submission of a white paper, cost and price analysis will not be performed until a proposal is submitted.

C. Review and Selection Process:

The white paper will be evaluated and categorized as follows:

1. **CATEGORY I:** Scientifically and technically sound white papers in line with program goals and objectives. White papers in Category I may be requested to submit a proposal.
2. **CATEGORY II:** White papers not technically sound or do not meet agency needs. White papers in Category II should not submit a proposal.

III. PROPOSALS

VOLUME I

Technical Proposal Content: The technical proposal must convey an understanding of the problems or limitations of the general technology area and the intended application(s). The technical proposal shall include the following items:

A. Executive Summary: Specify the university name, address, and CAGE. Describe the proposed program, objectives, and approach. A description of the innovation and benefits of the proposed approach and relationship to previous efforts should be discussed. It should summarize the technical issues addressed by the applicant's proposal without repeating the requirements. This should provide a vision of what will ultimately be achieved and what solution this effort will produce.

B. Program Description: Describe the techniques, methods, materials, or ideas that will be addressed in this proposal, their innovation, and to what degree they advance the state-of-the-art.

C. Program Plan: Describe in detail the planned approach and how the plan will be executed. This section should include all technical aspects of the approach. Provide technical detail and analysis necessary to support the technical approach proposed. Clearly identify the core of the intended approach. The "new and creative" solution to the problem(s) should be developed and analyzed in this section. Include a risk assessment of key technical, schedule, or cost areas and their potential impact on the program. Identify why proposed subcontractors were selected and what tasks they are to perform.

Grants do not include the delivery of software, training material, prototypes, and other hardware deliverables.

D. Statement of Work (SOW):

1. The SOW, a stand-alone document, should detail the research to be accomplished under the technical area and should be suitable for incorporation into the awarded document. The proposed SOW should summarize the technical methodology and the task description, but not to the extent to make the awarded instrument inflexible. **Do not**

include any proprietary or sensitive information in the SOW. The SOW should include the anticipated deliverables (reports).

2. The following is offered as a recommended format for the SOW. Applicants shall ensure that the SOW is structured in three sections: Scope, Applicable Documents, and Requirements.
 - a. **SCOPE:** This section includes a statement of what the program covers. This should include the technology area to be investigated, objectives/goals, and major milestones for the effort. It defines the breadth and limitations of the work to be done.
 - b. **APPLICABLE DOCUMENTS:** This section includes reference documents needed to identify or clarify the work to be performed.
 - c. **REQUIREMENTS:** This section identifies the specific work to be performed. The work effort should be arranged into major tasks and identified in separately numbered paragraphs. Each numbered major task should delineate by subtask the work to be performed and should follow an outline numbering scheme. The SOW must identify all reviews and when/where (identify by milestone or task) that will be conducted. It must also identify any and all items (hardware, software, reports, etc.) to be delivered to the Government as a result of the program.

E. Milestone Chart: The applicant shall include a Milestone Chart that should indicate when specific objectives are expected to be met in the overall program schedule and should identify the specific accomplishments necessary to proceed to the next task. The applicant shall provide a schedule of when the deliverable items, identified in the award, are to be delivered.

F. Facilities and Equipment Description: The applicant shall describe the facilities that can be used to achieve the goals of the program, in terms of manufacturing capability, testing facilities, and/or any relevant specialized equipment.

G. Description of Relevant Prior Work: The applicant shall provide a list of related previous or current government, commercial, or internally funded work during the past five years. For each such effort, the applicant shall provide the principal investigator, title of effort, contract/grant number, brief summary of results, dollar value, and a technical and contracting point of contact, including phone numbers, for the funding organizations.

H. Management Plan: Applicants should provide an approach that demonstrates the ability to effectively and efficiently manage and administer the research program to a successful conclusion.

I. Resumes of Key Individuals: Applicants shall include brief summaries of resumes of relevant key individuals, including any consultants or subcontractors that might be proposed.

NOTE: Page Limitations. The technical proposal including the SOW shall be limited to **30** pages single spaced, 8.5 by 11-inch pages. Text shall be 12-point Times New Roman font. Smaller type may be used in figures and tables as long as it is clearly legible. The page limitation includes all information (e.g., indices, photographs, foldouts (2 page), appendices, attachments, resumes, SOW, etc.). Blank pages, title pages, tables of content, lists, tabs or cover sheets are not included in the page count. The Government will not consider pages in excess of this limitation.

J. Intellectual Property

(1) In accordance with the various intellectual property provisions contained in applicable award authorities, including DFARS provisions for “Data Rights” and “Patent Rights” where a DFARS-based contract will be awarded, include a summary of any assertions to any intellectual property rights, including technical data or computer software that will be developed or delivered under the resultant award. This includes assertions to pre-existing rights, prototypes, or systems supporting and/or necessary for use of the research, results, or prototype. Any rights asserted in other parts of the proposal that would impact the rights to the Government must be cross referenced here. If any less than unlimited rights in any data delivered under the resultant award are asserted, the applicant must explain how these rights in the data will affect its ability to deliver research data, subsystems, and toolkits for integration as set forth below. Additionally, the applicant must explain how the program goals are achievable in light of these proprietary and/or restrictive limitations. If there are no claims of proprietary rights in pre-existing data, this section shall consist of a statement to that effect.

Applicants responding to this BAA must submit a separate list (Attachment 1) of all technical data or computer software according to the assertions table below as an attachment to its written proposal that will be furnished to the Government with other than unlimited rights. The Government will assume unlimited rights if applicants fail to identify any intellectual property restrictions in their proposals. Include in this section all proprietary claims to results, prototypes, and/or deliverables. If no restrictions are intended, then the applicant should state “NONE.”

(2) For technical data (other than computer software documentation) pertaining to items, components, or processes developed at private expense, identify both the deliverable technical data and each such item, component, or process as specifically as possible (e.g., by referencing specific sections of the proposal or specific technology or components).

For computer software or computer software documentation, identify the software or documentation by specific name or module or item number.

For each of the technical data or computer software identified above, identify the following information:

- Asserted rights. Identify the asserted rights for the technical data or computer software.
- Copies of negotiated, commercial, and other non-standard licenses. Applicant shall attach to its offer for each listed item copies of all proposed negotiated license(s), Applicant's standard commercial license(s), and any other asserted restrictions other than Government purpose rights; limited rights; restricted rights; rights under prior

government contracts, including SBIR data rights for which the protection period has not expired; or government's minimum rights.

- Specific basis for assertion, for example:
 - Development at private expense, either exclusively or partially. For technical data, development refers to development of the item, component, or process to which the data pertains. For computer software, development refers to the development of the software. Indicate whether development was accomplished exclusively or partially at private expense.
 - Rights under a prior government contract, including SBIR data rights for which the protection period has not expired.
 - Standard commercial license customarily provided to the public.
 - Negotiated license rights.
 - Entity asserting restrictions. Identify the corporation, partnership, individual, or other person, as appropriate, asserting the restrictions.
- Previously delivered technical data or computer software. The applicant shall identify the technical data or computer software that are identical or substantially similar to technical data or computer software that the applicant has produced for, delivered to, or is obligated to deliver to the Government under any contract or subcontract. The applicant need not identify commercial technical data or computer software delivered subject to a standard commercial license.
- Estimated Cost of Development. The estimated cost of development for that technical data or computer software to be delivered with less than Unlimited Rights.
- Supplemental information. When requested by the Government, the applicant shall provide sufficient information to enable the Government to evaluate the applicant's assertions. Sufficient information must include, but is not limited to, the following:
 - The contract number under which the data or software were produced; The contract number under which, and the name and address of the organization to whom, the data or software were most recently delivered or will be delivered; and
 - Identification of the expiration date for any limitations on the Government's rights to access, use, modify, reproduce, release, perform, display, or disclose the data or software, when applicable.

The Bayh-Dole Act shall apply for any patentable materials, technologies, or knowledge developed on a DFARS-based contract resulting from this BAA, and may apply in the case of an agreement or grant. The Government reserves nonexclusive, perpetual, royalty-free licensure of any materials developed under any contract or agreement resulting from this BAA.

The Government reserves the right to require delivery of additional data within the scope of the project that is not otherwise specified in any award instrument resulting from this BAA, as authorized to be withheld within a period of three years after acceptance of all items to be delivered. Any conversion into a prescribed form, reproduction or delivery will be compensated.

Ineligibility for award. An applicant's failure to submit or complete the identifications and assertions required by this section with its proposal may render the proposal ineligible for award.

This section must be severable (i.e., it will begin on a new page and the following section shall begin on a new page). The Government anticipates that the proposed Assertion of Data Rights will be incorporated as an attachment to the resultant award instrument. To this end, proposals must include a severable self-standing Assertion of Data Rights without any proprietary restrictions, which can be attached to the award instrument. This Assertion of Data Rights will not count against page limit for written proposals.

VOLUME II

Cost/Business Proposal

Separate this proposal into a Cost section and a Business section.

1. **Cost Section:** The cost proposal containing other than cost or pricing data shall be submitted in the format provided in the announcement (Attachment 2) and is necessary for the Government to make a fair and reasonable determination. In order to substantiate its proposed costs, each cost proposal shall include:

- a. Labor Rate Substantiation:

To substantiate proposed labor rates, the applicant shall provide a screen-capture (or equivalent) from the employer's payroll system for each name in the applicant's personnel. The screen-capture must display the date in which the data was pulled and must be dated within 30 days of the BAA closing date. If there is no payroll data available for one or more of the individuals proposed, the applicant shall provide payroll data for a comparable position and a brief analysis of how the proposed position is comparable to the position corresponding to the payroll data supplied. Any additional supporting documentation may be provided at the applicant's discretion. If any individual's proposed rate is different than the actual incurred rate provided on the screen-capture, the applicant shall explain the reason for the difference in the narrative.

The applicant shall identify its uniform escalation factor/rate, and how, when, and where it is applied.

- b. Indirect Cost:

For each proposed indirect rate, the applicant shall include a complete description of all cost elements under that particular indirect rate, as well as the allocation base to which these cost elements apply. Examples of indirect costs are consumable rates; subcontractor consumables rates; Information Technology rates; subcontractor handling fees; material handling fees; Fringe; General and Administrative (G&A); Overhead; reproduction; and consumable material. The applicant shall clearly identify the allocation base(s) for total costs. The applicant shall also identify if a Facilities & Administrative Rate Agreement or a recent audit report exists. Absent such agreements/reports, the applicant shall state the basis of its proposed indirect rates. If there is no rate agreement to support direct labor rates, the applicant shall include support, to include the proposed expense pool (by expense account) and allocation base detail, along with the last two (2) years actual pool

and base information. The proposed rates shall reflect the provided support or the applicant shall provide sufficient detail explaining how the proposed rates are realistic.

c. **Material (including consumables):**

The applicant shall provide a cost and price analysis on any proposed material including all consumables, provide a full materials cost breakdown summary, and a determination that the proposed material cost is determined to be fair and reasonable.

d. **Travel:**

The applicant shall provide cost for any travel costs with suitable rationale.

e. **Shipping:**

The applicant shall provide cost for any shipment costs associated with the proposal.

2. **Business Section:** The business section should contain all business aspects to the proposed contractual arrangement, such as type of contract/instrument, any unique terms and conditions, any exceptions to terms and conditions of the announcement or solicitation, and any information not technically related. The applicant shall provide a rationale for exceptions. As a goal, applicants are requested to keep the business section to no more than twenty (20) pages.
3. **Options:** If proposing options, they **must** be separately priced and separate spreadsheets should be provided for the base period and each option. In addition to providing a summary by period of performance (base and any options), the Contractor is also responsible for providing a breakdown of cost for each task identified in the Statement of Work. The sum of all costs by task worksheets **MUST** equal the total cost summary. In the event of any inconsistency, the total cost summary will take precedence.

If options are proposed, the cost proposal must provide the pricing information for the option periods; failure to include the proposed costs for the option periods will result in the options not being included in the award. Assume that performance will start no earlier than three (3) months after the date the cost proposal is submitted. A separate Adobe (.pdf) document should be included in the application that provides appropriate justification and/or supporting documentation for each element of cost proposed.

IV. PROPOSAL REVIEW AND EVALUATION PROCEDURES

A. General:

The Government reserves the right to select responsible applicant(s) for award.

Awards may be issued to any, all, part, or none of the proposals that are received in response to this announcement, subject to the availability of funds. You may be ineligible for award if all requirements of this announcement are not met by the proposal due date and time. At minimum,

incomplete proposals may be given lower priority and, although technically acceptable, not awarded due to funding limitations. The following evaluation criteria will be used.

B. Evaluation Criteria:

The selection of one or more sources for award will be based on an evaluation of each applicant's proposal, to determine the overall merit of the proposal in response to this announcement. Proposals will be evaluated in accordance with the regulations found at 2 C.F.R. Part 200, as well as the DoDGARS, specifically 32 C.F.R. Part 22. Proposals will not be evaluated against each other because applicants are not submitting proposals in accordance with a common statement of work. The proposals will be evaluated utilizing a peer or scientific review process and shall be evaluated based on the following criteria that are listed in "DESCENDING" order of importance:

1. Overall scientific and technical merits of the proposal;
2. Importance to NSWC PHD programs;
3. Fund availability/affordability.

Price will be a substantial consideration in selecting proposals for awards, but will be secondary to technical considerations. Cost realism and reasonableness shall also be considered to the extent appropriate. Price will be evaluated and may be negotiated if necessary on proposals selected for award.

C. Review and Selection Process:

The technical and cost proposals will be evaluated at the same time and categorized as follows:

1. **CATEGORY I:** Well-conceived, scientifically and technically sound proposals important to program goals and objectives. The labor hours and costs are fair, reasonable, and necessary to accomplish the work. Proposals in Category I are recommended for acceptance subject to funding constraints.
2. **CATEGORY II:** Scientifically or technically sound proposals that may require further development and may be recommended for acceptance subject to funding constraints but are at a lower priority than Category I proposals. Proposal clarifications or revisions may be requested.
3. **CATEGORY III:** Proposals not technically sound or do not meet agency needs and may be recommended for rejection.

V. ELIGIBILITY INFORMATION

All responsible sources from academia may submit proposals under this BAA. Historically Black Colleges and Universities (HBCUs) and Minority Institutions (MIs) are encouraged to

submit proposals and join others in submitting proposals. However, no portion of this BAA will be set aside for HBCU and MI participation.

Federally Funded Research & Development Centers (FFRDCs), including Department of Energy National Laboratories, are not eligible to receive awards under this BAA. However, teaming arrangements between FFRDCs and eligible principal bidders are allowed so long as they are permitted under the sponsoring agreement between the Government and the specific FFRDC.

Navy laboratories and warfare centers as well as other Department of Defense and civilian agency laboratories are also not eligible to receive awards under this BAA and should not directly submit either white papers or full proposals in response to this BAA.

Teams are also encouraged and may submit proposals in any and all areas. However, applicants must be willing to cooperate and exchange software, data and other information in an integrated program with other contractors, as well as with system integrators, selected by NSWC PHD.

Some topics cover export controlled technologies. Research in these areas is limited to “U.S. persons” as defined in the International Traffic in Arms Regulation (ITAR) – 22 CFR § 1201.1 et seq.

Reporting and Submission Requirements:

The Federal Funding Accountability and Transparency Act of 2006 (Public Law 109-282), as amended by Section 6202 of Public Law 110-252, requires that all agencies establish requirements for recipients reporting information on sub-awards and executive total compensation as codified in 2 CFR 170.110. Any company, non-profit agency or university that applies for financial assistance (either grants, cooperative agreements or other transaction agreements) as either a prime or sub-recipient under this BAA must provide information in their proposal that describes the necessary processes and systems in place to comply with the reporting requirements identified in 2 CFR 170.220. Entities are **exempt** from this requirement **UNLESS** in the preceding fiscal year, it received: a) 80 percent or more of its annual gross revenue in Federal contracts (and subcontracts), loans, grants (and subgrants), and cooperative agreements; b) \$25 million or more in annual gross revenue from Federal contracts (and subcontracts), loans, grants (and subgrants), and cooperative agreements; and c) the public does not have access to information about the compensation of the senior executives through periodic reports filed under section 13(a) or 15(d) of the Securities Exchange Act of 1934 or section 6104 of the Internal Revenue Code of 1986.

The applicant must use the Grants.gov forms from the application package template associated with the BAA on the Grants.gov web site located at <http://www.grants.gov/>. Questions regarding the system should be directed to the Grants.gov helpdesk.

Please note that Volume I - Technical Proposal should be submitted as an attachment to the SF-424 rather than being inserted into Block 8, Project Narrative. Block 8 should be completed with a statement that Volume I is attached. To attach the Technical Proposal, open the Attachment Form in the Optional Documents box of the application package, scroll down to the Attachment page, and follow the instructions. The file should be titled “Volume I – Technical Proposal.”

VI. AWARD NOTICES

Applicants will be notified in writing whether or not their proposal is recommended for award. An award recommendation is not to be construed to mean the award of a contract, grant or assistance instrument is assured, as availability of funds and successful negotiations are prerequisites to any award.

VII. DEBRIEFINGS

When requested, the Government may provide a debriefing; however, applicants shall ensure their debriefing requests are made within ten (10) calendar days from the date of being notified by the Government, that their proposal was not - recommended for award. The nature, form, and date of a debriefing is within the discretion of the Government. Additional information on debriefing requests will be forwarded to proposers with the notice advising of a proposal not being recommended for award.

VIII. OTHER INFORMATION

A. Certification Regarding Lobbying Activities:

(1) No Federal appropriated funds have been paid or will be paid by or on behalf of the applicant, to any person for influencing or attempting to influence an officer or employee of an agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any Federal contract, the making of any Federal grant, the making of any Federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal contract, grant, loan, or cooperative agreement.

(2) If any funds other than Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the Federal contract, grant, loan, or cooperative agreement, the applicant shall complete and submit Standard Form-LLL, "Disclosure Form to Report Lobbying," in accordance with its instructions.

(3) The applicant shall require that the language of this certification be included in the award documents for all subawards at all tiers (including subcontracts, subgrants, and contracts under grants, loans, and cooperative agreements) and that all subrecipients shall certify and disclose accordingly.

This certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this certification is a prerequisite for making or entering into this transaction imposed by Section 1352, title 31, U.S.C. Any person who fails

to file the required certification shall be subject to a civil penalty of not less than \$10,000 and not more than \$100,000 for each such failure.

B. Organizational Conflicts of Interest:

All applicants and proposed subcontractors must affirm whether they are providing scientific, engineering, and technical assistance (SETA) or similar support to any NAVSEA technical office(s) through an active contract or subcontract. All affirmations must state which office(s) the applicant supports and identify the prime contract numbers. Affirmations shall be furnished at the time of proposal submission. All facts relevant to the existence or potential existence of organizational conflicts of interest (FAR 9.5) must be disclosed. The disclosure shall include a description of the action the applicant has taken or proposes to take to avoid, neutralize, or mitigate such conflict. In accordance with FAR 9.503 and without prior approval, a contractor cannot simultaneously be a SETA and a research and development performer. Proposals that fail to fully disclose potential conflicts of interests or do not have acceptable plans to mitigate identified conflicts will be rejected without technical evaluation and withdrawn from further consideration for award. If a prospective applicant believes that any conflict of interest exists or may exist (whether organizational or otherwise), the applicant should promptly raise the issue with NAVSEA by sending his/her contact information and a summary of the potential conflict by e-mail to the Business Point of Contact in Section I. Paragraph D. above, before time and effort are expended in preparing a proposal and mitigation plan. If, in the sole opinion of the Contracting Officer, after full consideration of the circumstances, any conflict situation cannot be effectively avoided or mitigated, the proposal may be rejected without technical evaluation and withdrawn from further consideration for award under this BAA.

C. Reporting Requirements:

- (a) Definition: "First-tier subcontract" means a subcontract awarded directly by the contractor for the purpose of acquiring services for performance of a prime contract. It does not include the contractor's supplier agreements with vendors, such as long-term arrangements for materials or supplies or services that benefit multiple contracts and/or the costs of which are normally applied to a contractor's general and administrative expenses or indirect costs.
- (b) Reporting shall be done in accordance with DoD R&D General Terms and Conditions and ONR Addendum to the DoD R&D General Terms and Conditions (<https://www.onr.navy.mil/work-with-us/manage-your-award/manage-grant-award/grants-terms-conditions>). The contractor shall report annually, by October 31, at <https://www.sam.gov>, on services performed during the preceding Government fiscal year (October 1 - September 30) under this contract or agreement for each order, including any first-tier subcontract, which exceeds \$3 million for services in the following service acquisition portfolio groups:
 - (1) Logistics management services.
 - (2) Equipment-related services.
 - (3) Knowledge-based services.
 - (4) Electronics and communications services.

(c) The Contractor shall report the following information for the order:

(1) The total dollar amount invoiced for services performed during the preceding Government fiscal year under the order.

(2) The number of Contractor direct labor hours, to include first-tier subcontractor direct labor hours, as applicable, expended on the services performed under the order during the previous Government fiscal year.

(d) The Government will review the Contractor's reported information for reasonableness and consistency with available contract information. In the event the Government believes that revisions to the Contractor's reported information are warranted, the Government will notify the Contractor. Upon notification, the Contractor shall revise the reported information or provide the Government with a supporting rationale for the information.